

Iqbal Hussain v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 28 July 2020 · WRIT - C No. 10878 of 2020 · **Writ dismissed; petitioner relegated to Supply Code 6.8(b).**

HEADNOTE

A writ petition challenging assessment of electricity charges on a temporary connection is not maintainable. The consumer must take that grievance to the competent authority under clause 6.8(b) of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Iqbal Hussain filed a writ petition in the High Court of Judicature at Allahabad challenging assessment of electricity charges on a temporary connection granted to him for 90 days. On 7 July 2020 the matter was adjourned because the petition had been filed without serving respondent no. 3. On 13 July 2020 the Court granted that respondent a week to seek instructions and directed that no coercive measure be taken against the petitioner until the next listing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(b)

assessment of electricity dues — alternate remedy

HOLDING

Where the consumer is aggrieved by assessment of electricity charges, including charges on a temporary connection granted for 90 days, the appropriate remedy is to approach the competent authority under clause 6.8(b) of the Electricity Supply Code, 2005; the writ petition is dismissed. ¶ 3

PRINCIPLE TAGS

assessment-6.8-alternate-remedy

Applied to dismiss a writ challenging assessment of charges on a 90-day temporary connection; clause 6.8(b) of the Supply Code is the competent forum. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ASSESSMENT OF ELECTRICITY CHARGES ON THE PETITIONER'S 90-DAY TEMPORARY CONNECTION

The Court did not examine the assessment on merits and relegated the petitioner to clause 6.8(b). ¶ 3